

02343030

P 3

THE STATE OF TEXAS  
VS.

02343030

D.A. LOG NUMBER:1367780  
CJIS TRACKING NO.:

EMILY KATE JANES  
3437 CHOCTAW  
LA PORTE, TX 77571

SPN:  
DOB: WF 02/24/1984  
DATE PREPARED: 2/11/2008

BY: JS DA NO: 065427500  
AGENCY:DEER PARK PD  
O/R NO: 20081860  
ARREST DATE: TO BE

NCIC CODE: 1199 01

RELATED CASES:

FELONY CHARGE: **IMPROPER RELATIONSHIP WITH STUDENT**  
CAUSE NO:  
HARRIS COUNTY DISTRICT COURT NO: 1153277  
FIRST SETTING DATE: 232

BAIL: \$30,000  
PRIOR CAUSE NO:

**IN THE NAME AND BY AUTHORITY OF THE STATE OF TEXAS:**

Before me, the undersigned Assistant District Attorney of Harris County, Texas, this day appeared the undersigned affiant, who under oath says that he has good reason to believe and does believe that in Harris County, Texas, **EMILY KATE JANES** hereafter styled the Defendant, heretofore on or about **DECEMBER 22, 2007**, did then and there unlawfully while an employee of a PUBLIC SECONDARY school, intentionally and knowingly engage in **SEXUAL INTERCOURSE** with **FRED NOLAN MCGINNIS**, hereinafter called the Complainant, a student who was enrolled at the school at which the Defendant worked and who was not the Defendant's spouse, by **CAUSING THE COMPLAINANT'S MALE SEXUAL ORGAN TO CONTACT THE FEMALE SEXUAL ORGAN OF THE DEFENDANT**.

**PROBABLE CAUSE**

AFFIANT, D.M. BODE, IS CURRENTLY EMPLOYED AS A PEACE OFFICER WITH THE DEER PARK POLICE DEPARTMENT. AFFIANT BELIEVES AND HAS REASON TO BELIEVE, DEFENDANT, EMILY KATE JANES, COMMITTED THE OFFENSE OF IMPROPER RELATIONSHIP BETWEEN EDUCATOR AND STUDENT, ON OR ABOUT DECEMBER 22, 2007, IN HARRIS COUNTY, TEXAS.

AFFIANT SPOKE WITH THE COMPLAINANT, FRED NOLAN MCGINNIS, AN 18 YEAR OLD MALE 12TH GRADE STUDENT AT DEER PARK HIGH SCHOOL SOUTH CAMPUS WHO IS A CREDIBLE AND RELIABLE PERSON. THE COMPLAINANT STATED BETWEEN THE DATES OF DECEMBER 19, 2007 AND JANUARY 25, 2008, HE AND THE DEFENDANT, WHO HE KNOWS BY NAME ( EMILY KATE JANES) AND SIGHT, AS A 11TH GRADE ENGLISH TEACHER AT HIS SCHOOL, DEER PARK HIGH SCHOOL SOUTH CAMPUS ENGAGED IN SEXUAL ACTIVITY. THE COMPLAINANT STATED ON OR ABOUT DECEMBER 22, 2007, THE DEFENDANT PLACED THE COMPLAINANT'S ERECT PENIS INSIDE THE DEFENDANT'S MOUTH. THE COMPLAINANT FURTHER ADVISED THE SEXUAL ACTIVITY TOOK PLACE IN THE UPSTAIRS LIVING ROOM AT THE DEFENDANT'S RESIDENCE, WHICH IS LOCATED AT 3637 CHOCTAW, LA PORTE, HARRIS COUNTY, TEXAS. THE COMPLAINANT FURTHER ADVISED THAT LATER THE SAME DAY, THE COMPLAINANT AND THE DEFENDANT ENGAGED IN SEXUAL INTERCOURSE WHEN THE DEFENDANT PLACED THE COMPLAINANT'S ERECT PENIS INSIDE THE DEFENDANT'S VAGINA, WHILE AT THE DEFENDANT'S RESIDENCE OF 3637 CHOCTAW, LA PORTE, HARRIS COUNTY, TEXAS. THE COMPLAINANT STATED THE SEXUAL INTERCOURSE TOOK PLACE IN THE DEFENDANT'S MASTER BEDROOM. THE NEXT DAY, THE DEFENDANT ASKED THE COMPLAINANT TO KEEP THEIR RELATIONSHIP A SECRET SINCE SHE WAS A TEACHER AT HIS HIGH SCHOOL AND HE WAS A STUDENT. THE COMPLAINANT FURTHER STATED BETWEEN THE DATES OF DECEMBER 19, 2007 AND JANUARY 25, 2008, HE ENGAGED IN SEXUAL ACTIVITY WITH THE DEFENDANT ON SIX DIFFERENT OCCASIONS. THE COMPLAINANT STATED THE SEXUAL ACTIVITY TOOK PLACE IN THE DEFENDANT'S RESIDENCE.

AFFIANT SPOKE WITH THE DEFENDANT ON February 8, 2008. DEFENDANT STATED SHE DID NOT "RAPE" THE COMPLAINANT, BUT DID HAVE CONSENSUAL SEXUAL INTERCOURSE WITH HIM KNOWING THE SEXUAL ACTIVITY WAS INAPPROPRIATE BETWEEN HER AS A TEACHER AND THE COMPLAINANT SINCE HE WAS A STUDENT. THE DEFENDANT STATED SHE WAS AWARE THAT THE COMPLAINANT WAS CURRENTLY ENROLLED AS AN 18 YEAR OLD, 12TH GRADER AT DEER PARK HIGH SCHOOL SOUTH CAMPUS AND SHE HAD MET THE VICTIM WHEN SHE WAS TEACHING HIS 11TH GRADE ENGLISH CLASS IN SPRING 2007. THE DEFENDANT FURTHER STATED BETWEEN LATE DECEMBER 2007 AND LATE JANUARY 2008, SHE ENGAGED IN SEXUAL ACTIVITY WHICH INCLUDED SEXUAL INTERCOURSE WITH THE COMPLAINANT

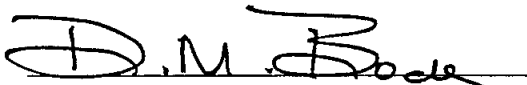
WHILE AT HER RESIDENCE. THE DEFENDANT STATED ON MORE THAN ONE OCCASION SHE PLACED THE COMPLAINANT'S ERECT PENIS IN HER MOUTH AND PLACED HIS ERECT PENIS IN HER VAGINA. THE DEFENDANT STATED SHE ASKED THE COMPLAINANT TO KEEP THEIR RELATIONSHIP A SECRET.

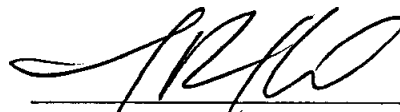
Unofficial Copy Office of Marilyn Burgess District Clerk

FILED CHANG  
THERESA CLERK  
DISTRICT CLERK  
HARRIS COUNTY, TEXAS  
2008 FEB 11 PM 4:21  
DEPUTY

AGAINST THE PEACE AND DIGNITY OF THE STATE.

Sworn to and subscribed before me on February 11, 2008

  
AFFIANT

  
ASSISTANT DISTRICT ATTORNEY  
OF HARRIS COUNTY, TEXAS.

BAR NO.

COMPLAINT

Unofficial Copy Office of M. S. Burgess District Clerk

**COPY OF COMPLAINT/WARRANT DELIVERED TO**

Officer's name: Dave Pade

Police agency: DEER PARK PD

Phone no: 281-930-2146 date/time: 2-11-8/631